

CHAPTER 1: PURPOSE AND APPLICABILITY

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CHAPTER 1: PURPOSE AND APPLICABILITY

Section 1.1 Title

This Ordinance is officially titled as *Unified Development Ordinance of China Grove, North Carolina* and shall be known as the *Unified Development Ordinance* (UDO). The official map designating the various zoning districts shall be titled, *Town of China Grove Zoning Map*, and shall be known as the *Zoning Map*.

Section 1.2 Authority

Zoning provisions enacted herein are under the authority of NCGS 160D, which extends to cities the authority to enact regulations which promote the health, safety, morals, or the general welfare of the community. It is further authorized under NCGS 160D, Article 7 which authorizes cities to regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures, or land. This section further authorizes the establishment of overlay districts in which additional regulations may be imposed upon properties that lie within the boundary of the district. The statutes also require that all such regulations shall be uniform for each class or type of building throughout each district, but that the regulations in one district may differ from those in other districts.

Subdivision provisions enacted herein are under the authority of NCGS 160D, Article 8 which provide for the coordination of streets within proposed subdivisions with existing or planned streets and with other public facilities, the dedication or reservation or recreation areas serving residents of the immediate neighborhood within the subdivision, or alternatively, for the provision of funds to be used to acquire recreation areas serving residents of more than one neighborhood in the immediate area, and for the distribution of population and traffic in a manner that will avoid congestion and overcrowding, among other provisions.

Section 1.3 Applicability

1.3.1 Jurisdiction

These regulations apply to the development and use of all land and structures within the corporate limits of the Town of China Grove, North Carolina and within the extraterritorial jurisdiction exercised by Ordinance and as now or hereafter fixed, said territory being indicated on the *Zoning Map* as is on file at the in the Town Clerk's office at China Grove Town Hall. This map and its boundaries shall be incorporated and made part of this Ordinance.

1.3.2 Exemptions

A. These regulations shall not apply to any land or structure for which, prior to the effective date hereof, there is a properly approved site-specific plan as required by the requirements previously adopted. Any preliminary or final subdivision plat approvals required for such approved and exempted site-specific plans shall be conducted in accordance with the requirements of the previous Zoning Ordinance or Subdivision Ordinance.

B. The provisions of this Ordinance shall not apply to existing bona fide farms. This ordinance does not exercise any controls over crop lands, timber lands, pasture lands, idle or other farmlands, nor over any farm house, barn, poultry house, or other farm buildings, including tenant or other houses for persons working on said farms, as long as such houses shall be in the same ownership as the farm and located on the farm. Such agricultural uses maintain the openness of the land and achieve the purposes of this

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ordinance without the need for regulation. Residences for non-farm use or occupancy and other non-farm uses shall be subject to the provisions of this ordinance.

Section 1.4 Relationship to Other Ordinances

It is not intended that this ordinance repeal, abrogate, annul, impair, or interfere with any existing easements, covenants, deed restrictions, agreements, vested rights or building permits previously adopted or issued pursuant to law and currently effective. Additionally, this ordinance recognizes that applicants for development approval have rights granted through NCGS Chapter 160D-108(b), concerning a choice of development regulations applicable to said approval in the case where such regulations change between the time the application was submitted and a decision regarding the application is made. The choices available to applicants are detailed in Section 17.1.2 Permit Choice.

Section 1.5 Severability

If any Section or specific provision or standard of this Ordinance or any regulating district boundary arising from it is found by a court to be invalid for any reason, the decision of the court shall not affect the validity of any other section, provision, standard, or district boundary of these regulations except the provision in question. The other portions of these regulations not affected by the decision of the court shall remain in full force and effect.

Should any section or provision of this ordinance be decided by a court of competent jurisdiction to be unconstitutional or invalid, such decision shall not affect the validity of the ordinance as a whole or any part thereof other than the part so declared to be unconstitutional or invalid.

Section 1.6 Zoning Map Interpretation

The map entitled *Town of China Grove Zoning Map*, as adopted by the China Grove Town Council and certified by the Town Clerk establishes the official zoning districts and overlay districts.

Where uncertainty exists as to the boundaries of any district shown on the Official Zoning Map, the Zoning Administrator shall employ the following rules of interpretation.

A. Centerline: Where a boundary line lies within and follows a street or alley right-of-way, a railroad right-of-way, or utility easement, the boundary shall be construed to be in the center of such street or alley right-of-way, railroad right-of-way, or utility easement forming the boundary between two separate zoning districts is abandoned or removed from dedication, the district boundaries shall be construed as following the centerline of the abandoned or vacated road bed or utility easement.

B. Edge Line: Where a boundary line follows the edge of a street or alley right-of-way, a railroad right-of-way, or utility easement, the boundary shall be construed to be on the edge of such street or alley right-of-way, railroad right-of-way, or utility easement. If such a street or alley right-of-way, railroad right-of-way, or utility easement forming the boundary between two separate zoning districts is abandoned or removed from dedication, the district boundaries shall be construed as following the edge of the abandoned or vacated road bed or utility easement.

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C. Lot Line: Boundaries indicated as approximately following lot lines shall be construed as following such lot lines. In the event that a district boundary line divides a lot or tract, each part of the lot or tract so divided shall be used in conformity with the regulations established by this Ordinance for the district in which said part is located.

D. Town Limits: Boundaries indicated as approximately following town limits or extraterritorial boundary lines shall be construed as following the town limits or extraterritorial boundary lines.

E. Watercourses: Boundaries indicated as approximately following the centerlines of streams, rivers, canals, lakes, or other bodies of water shall be construed to follow such center lines.

F. Extensions: Boundaries indicated as parallel to or extensions of street or alley rights-of-way, utility easements, lot lines, city limits, county lines, or extraterritorial boundaries shall be so construed.

G. Scaling: In a case where a district boundary does not coincide with any boundary lines as above and no distances are described by specific ordinance; the boundary shall be determined by the use of the scale appearing on the map.

H. Where the Zoning Administrator determines that physical features existing on the ground, or actual property lines or other man-made boundary lines used to depict zoning district boundaries, are at variance with those shown on the Official Zoning Map, the Board of Adjustment shall have the authority to interpret Zoning district boundaries.

Section 1.7 Effective Date

These regulations shall become effective on August 1, 2006. Upon such date, these regulations shall supersede, repeal, and replace the Town of China Grove Zoning Ordinance and the Town of China Grove Subdivision Ordinance.